

SENATE BILL 2688

By Walley

AN ACT to amend Chapter 32 of the Private Acts of 2009; and  
any other acts amendatory thereto, relative to the charter  
of the City of Adamsville.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Chapter 32 of the Private Acts of 2009, and any other amendatory acts  
thereto, is amended by deleting Section 2.09 in its entirety and substituting instead:

Section 2.09. Vacancy in office of Mayor or Commissioner. A vacancy shall  
exist if the mayor or a city commissioner resigns, dies, moves their residence from the  
city, or is removed from office under Tennessee Code Annotated, Title 8, Chapter 47.  
The city commission shall declare a vacancy to exist for any of these reasons.

Any person convicted of malfeasance or misfeasance in office, a felony, or a  
crime involving moral turpitude shall be prohibited from holding office with the city for a  
period of ten (10) years.

The remaining city commissioners shall appoint a qualified person to fill a  
vacancy, and the person so appointed shall serve until the next regular city election. At  
the next regular city election, any remaining unexpired term shall be filled.

In the event of any vacancy on the commission which such commissioners shall  
fail or neglect to fill such vacancy within forty-five (45) days of its occurrence, the mayor  
shall appoint a person to fill the vacancy within fifteen (15) days.

SECTION 2. This act shall have no effect unless it is approved by a two-thirds (2/3) vote  
of the legislative body of the City of Adamsville. Its approval or nonapproval shall be proclaimed  
by the presiding officer of the legislative body and certified to the secretary of state.

SECTION 3. For the purpose of approving or rejecting the provisions of this act, it shall be effective upon becoming a law, the public welfare requiring it. For all other purposes, it shall become effective as provided in Section 2.